

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

CARTER ROBERTSON,

Respondent

) Case Number: FCS-19-353895

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

*** DE NOVO HEARING *** SET RE: CHILD SUPPORT PER REVIEW OF COMMISSIONER'S
FINDINGS OF FACT AND RECOMMENDATION FILED 07/14/26

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are the County of San Francisco, Respondent Carter Robinson (Father),
and Other Parent Delilah Alison Chung (Mother).
- 2) On 6/26/2019, the Department of Child Support Services (DCSS) filed a Summons and
Complaint alleging that Respondent is the father of Cameron (DOB: 12/6/2017, age 8) and
seeking to establish a child support order.
- 3) On 8/22/2019, Respondent filed an Answer to Complaint admitting that he is the parent of
Cameron but disagreeing with the DCSS' request to establish child support. Respondent also
stated in his Answer, "Don't mind submitting to genetic testing."
- 4) On 10/22/2019, DCSS filed a Document in Support of Child Support Action to which is attached
a LabCorp test result showing that Respondent's probability of paternity of Cameron is 99.99%.
- 5) At the 10/30/2019 hearing, all parties appeared for a hearing before Commissioner Wightman.
Respondent appeared with his attorney Sean Joyce. The minutes reflect that a general advisement

1 was given regarding Commissioner Wightman acting as Judge Pro Tem. A Judgment Regarding
2 Parental Obligations was filed that same day, which names Respondent and Other Parent as
3 Cameron's parents and which requires Respondent to pay Petitioner \$1,000 per month in child
4 support.

5 6) On 1/13/2020, Father filed a Request for Order seeking to modify the existing child support
6 order.

7 7) At the 2/25/2020 hearing, an attorney for SF DCSS was present but Father and Mother were not.
8 The minutes reflect that a general advisement was given regarding Commissioner Wightman
9 acting as Judge Pro Tem. An Order After Hearing filed that same day reduced the monthly child
10 support obligation to \$463 and set a review hearing for 5/5/2020.

11 8) At the 5/5/2020 hearing, all parties appeared. The minutes reflect that a general advisement was
12 given regarding Commissioner Wightman acting as Judge Pro Tem. An Order After Hearing was
13 filed that same day increased the monthly child support obligation to \$650. To date, this order has
14 not been modified.

15 9) Now on for hearing is Father's Request for Order filed 5/29/2026 wherein Father asks the Court
16 to make the following orders:

- 17 a. Enter an immediate finding that Case No. FCS-19-353895 is void from inception.
18 b. Order SF DCSS to immediately cease all enforcement activity in any jurisdiction.
19 c. Order SF DCSS to notify the Clark County District Attorney's Office that Nevada Case
20 No. 3200415534 has no valid predicate order and all Nevada enforcement must cease.

21 10) Father makes various arguments in support of his requested orders, including:

- 22 a. Mother confirmed in a written communication received 7/28/2022 that she and the child
23 had been living in Denver, Colorado "for a long while." Father states he moved to
24 Nevada in October 2023. Father contends this Court lost jurisdiction by operation of law
25 in October 2023 under Family Code section 5700.205 and every enforcement action since
26 that date including Nevada Case No. 3200415534 "opened December 2025 and
27 continuing through May 2026" was taken without jurisdictional authority.
28 b. Under Lucia v. SEC, 585 U.S. 237 (2018), officers exercising significant authority under
29 federal law must be appointed pursuant to Article II of the United States Constitution.

Commissioner Wightman operates under Title IV-D of the Social Security Act, a federal program. Commissioner Wightman was appointed under California state Court rules, not pursuant to Article II of the United States Constitution and her appointment does not satisfy constitutional requirements. Therefore, every order entered by Commissioner Wightman is void.

c. Father was never advised of his right to object or to demand an Article III judicial officer and any verbal responses made by Father during the 10/30/2019 proceeding reflected “situational compliance in an unfamiliar institutional setting, not the knowing, intelligent, and voluntary waiver required by Johnson v. Zerbst, 304 U.S. 458 (1938), as Respondent was never advised that he possessed the right to object to or demand adjudication before constitutionally appointed Article III judge.” Therefore, every order entered by Commissioner Wightman is void.

d. Father served SF DCSS with a Bill of Articles and SF DCSS did not respond. Father states that SF DCSS’ silence constitutes a constructive admission that the Agency cannot demonstrate constitutional authority for any enforcement action taken against Father.

11) On 6/5/2026, SF DCSS filed a Proof of Service by Mail reflecting that Father’s Request for Order was mailed to Mother on 6/3/2026.

12) On 6/30/2026, Father appeared for a hearing before Commissioner Rahim in Dept. 416 on his 5/29/2026 Request for Order. Mother also appeared, along with an attorney for SF DCSS. Father objected to Commissioner Rahim hearing the matter. Commissioner Rahim heard argument and made findings and recommendations, which were memorialized in the Findings and Recommendation of Commissioner filed that same day.

13) On 7/13/2026, Father filed a Notice of Objection and requested that the matter be set for a de novo hearing before a superior court judge.

14) Per the Review of Commissioner’s Findings of Fact and Recommendation filed on 7/14/2026, Father’s 5/29/2026 Request for Order was set for a de novo hearing on 7/23/2026 in Dept. 404. The Review of Commissioner’s Findings of Fact and Recommendation, along with the Tentative Ruling Instructions, were mailed by the Court to SF DCSS, Father, and Mother on 7/14/2026.

1 **B. Findings and Order**

- 2 1) Family Code section 5700.205 governs a California tribunal's ability to modify a child support
3 order; it does not govern jurisdiction to enforce a child support order. Rather, Family Code
4 section 5700.206 specifically states that this Court has authority to request a tribunal of another
5 state (e.g., Nevada) to enforce a controlling child support order if the order has not been modified
6 by a tribunal of another state that assumed jurisdiction pursuant to the Uniform Interstate Family
7 Support Act. As this Court is unaware of any order modifying the May 2020 child support order,
8 this Court has continuing jurisdiction to seek its enforcement.
- 9 2) Lucia v. SEC (2018) 585 U.S. 237 is not applicable here as that case concerns the appointment of
10 administrative law judges under the Appointments Clause (Article II) of the U.S. Constitution and
11 has no application to California superior court commissioners appointed pursuant to California
12 law. Moreover, there is no constitutional right to have a California family law matter heard by an
13 Article III federal judge.
- 14 3) The Court does not find that SF DCSS' lack of response to Father's Bill of Articles constitutes a
15 constructive admission that the SF DCSS cannot demonstrate constitutional authority for any
16 enforcement action taken against Father.
- 17 4) Father appeared at the prior 10/30/2019 hearing (with an attorney) and at the 5/5/2020 hearing (in
18 pro per). The minutes for those hearing dates reflect that a general advisement was given
19 regarding Commissioner Wightman acting as Judge Pro Tem. Father has presented no evidence to
20 refute this statement in the minutes. Moreover, Father subsequently participated in those hearings
21 and therefore waived his right to have the matter heard by a superior court judge.
- 22 5) For the reasons stated above, Father's Request for Order filed 5/29/2026 is denied in its entirety.
- 23 6) The Court will prepare the Findings and Order After Hearing.
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